

CONTRACT NO. _____

CONTRACT EMPLOYMENT AGREEMENT

THIS AGREEMENT, made and entered into this ____ day of August, 2019, by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, acting by and through its political subdivision, the Cheyenne Police Department, hereinafter referred to as the "Department," and Yolanda Ronnau, hereinafter referred to as "Ronnau."

WITNESSETH:

WHEREAS, the Department is a law enforcement agency serving the City of Cheyenne, and is a department thereof; and

WHEREAS, the Department has received a grant of funds from the Wyoming Division of Victim Services for the purpose of providing crime victim assistance services; and

WHEREAS, in order to provide crime victim assistance services, the Department desires to retain the services of a "Part Time Victim Assistance Advocate;" and

WHEREAS, because funding a Part Time Victim Assistance Advocate position is dependent on the receipt of a grant, the Department wishes to create a contract employee rather than permanent employee position; and

WHEREAS, Ronnau has training and experience in the field of assisting crime victims; and

WHEREAS, Ronnau desires to provide services to the Department under the terms and conditions hereinafter contained.

NOW, THEREFORE, in consideration of the promises and mutual covenants herein, the parties agree as follows:

1. The term of this Agreement shall commence July 30, 2019, and terminate June 30, 2020, unless sooner terminated pursuant to Section 9 below or if grant funding is no longer available.

2. Ronnau will be considered a contract employee of the Department. She will act as Part Time Victim Assistance Advocate and assist the Department.

3. Ronnau shall at all times coordinate her activities hereunder with the Department and shall work under the direction of the Department.

4. The Department agrees to pay Ronnau the sum of Two Thousand Nine Hundred Three Dollars and Twenty-Six Cents (\$1,200.00) per month. The total amount over the term of this agreement will not, in any event, exceed the sum of Ten Thousand Eight Hundred Dollars and Zero Cents (\$10,800.00).

5. The City of Cheyenne will withhold appropriate federal income and social security taxes and remit them to the federal government.

6. In the event that the governing body authorizes a bonus to be paid to city employees, Ronnau would be eligible to receive a bonus similar to other city employees. Such bonus payment shall first be made out of grant funds, if available, then out of Department funds, if grant funds are not available.

7. In the event that Ronnau is eligible to receive a pay increase based on her Annual Performance Evaluation, such pay increases shall first be made out of grant funds, if available, then out of Department funds if grant funds are not available.

8. Ronnau is subject to the City of Cheyenne Personnel Rules and Regulations, all federal and state laws, city ordinances and actions of the city's governing body pertaining generally to city employees, except that Ronnau shall not be entitled to the procedural protections set forth in the following sections of the City's personnel rules: Chapter X, Section 3.C., last sentence; Chapter X, Section 3.D.2; Chapter X, Section 3.D.3; Chapter XI; and Chapter XII, Section 2.B. and 2.C. Because this contract is for one year and because the funding for the position is dependent on grant funding, Ronnau is not a permanent employee of the City of Cheyenne. It is mutually understood and agreed that Ronnau is employed on an "at will" basis and that her employment may be terminated by the Department, with or without cause.

9. This Agreement may be terminated by the Department, with or without cause.

10. Ronnau agrees to comply with all applicable federal, state and local laws, rules and regulations in the performance of this Agreement.

11. If any provision, section, subsection, sentence, clause or phrase of this Agreement is invalidated by any court of competent jurisdiction, the Agreement will automatically terminate.

12. All parties acknowledge full opportunity for consultation with legal counsel regarding this Agreement or have consulted with legal counsel.

13. The City of Cheyenne and the Department do not waive their sovereign immunity by entering into this Agreement and fully retain all immunities and defenses provided by law in respect to any action based on or occurring as a result of this Agreement.

14. This Agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties have hereunder set their hands and seals the day and year first above written.

CITY OF CHEYENNE

BY:

Marian Orr, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

CHEYENNE POLICE DEPARTMENT

BY:

Brian Kozak, Chief of Police

Yolanda Ronnau